

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents

SEA'S MOTION TO COMPEL DISCOVERY

Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”), by its undersigned counsel, respectfully moves, pursuant to 46 C.F.R. § 502.150, to compel Respondents Orient Overseas Container Line, Limited (“OOCL China”) and OOCL (Europe) LTD (“OOCL Europe”) (collectively, “Respondents” or “OOCL”) to provide responses to SEA’s discovery requests and to produce responsive documents and materials within Respondents’ possession, control, or custody.

I. INTRODUCTION

For months, OOCL has represented to the Presiding Officer (the “ALJ”) that its production and responses to discovery have been complete since September 2025. That is false. OOCL has yet to produce any documents from the Respondents in this matter. Instead, OOCL has produced a smattering of documents from its U.S. agent, OOCL (USA) (“OOCL USA”), a non-party to this matter. The documents that have been produced thus far have been provided in sporadic tranches,

most recently on January 9, 2026, and many of them are partial or incomplete. OOCL's failure is patently obvious – Respondent OOCL China is a controlled carrier based in Hong Kong, yet the production has not included a single document from China. Moreover, OOCL knows that its discovery has been incomplete, even as it falsely represented otherwise.

SEA has sought to cooperatively resolve the discovery disputes detailed below and in Appendix II (OOCL Incomplete Responses to Interrogatories) and Appendix III (OOCL Incomplete Responses to Requests for Production), through numerous letters and conferences with OOCL's counsel, including agreements to modify requests where appropriate. Yet OOCL has continued to shirk its discovery obligations, willfully failing to answer key Interrogatories and produce core discovery that goes to the heart of OOCL's demurrage and detention practices at issue in SEA's Verified Amended Complaint.

OOCL's discovery failures and gamesmanship will necessitate a further extension of the discovery schedule, prejudicing SEA further. SEA respectfully requests relief as outlined below.

II. BACKGROUND

From 2020 to 2022, SEA was the consignee of thousands of containers carried by OOCL on store-door delivery ("SDD") terms under shipping agreements between OOCL and SEA's affiliates. Under the relevant agreements and its own tariff, OOCL as carrier was responsible for the containers until delivered to the inland destination or handed over to a Customer Nominated Trucker ("CNT"). In the event a CNT was not able to perform, OOCL had the option to use an alternate trucker to perform the inland delivery, at the shipper's cost. Nevertheless, OOCL failed to utilize other truckers, and charged SEA approximately \$12.5 million in demurrage for its own delays in delivering the containers during the 2020–2022 period.

As the entity that had custody and control of SEA's containers and charged that demurrage to SEA, OOCL's own records concerning demurrage and detention policies, practices, and

decisions, as well as documents regarding SEA's containers, are fundamental to the analysis of the reasonableness of OOCL's charges. The Commission's incentive principle and recent decisions in similar matters have called for a complete container-specific, policy-specific record to enable the Commission to evaluate the reasonableness of demurrage and detention charges. OOCL's incomplete and selective responses prejudice SEA by withholding information necessary for the prosecution of SEA's claims and further extend the timeline for the resolution of this matter.

III. CERTIFICATION OF EFFORTS TO RESOLVE DISCOVERY DISPUTE

SEA has repeatedly attempted to resolve these discovery deficiencies without the necessity of motion practice. On September 23, 2025, and again on November 14, 2025, SEA served OOCL with extensive and detailed deficiency letters identifying specific gaps in OOCL's interrogatory responses and document production, including missing terminal- and container-level information, incomplete searches of electronically stored information ("ESI") including an apparent failure to search the Respondent entities, incomplete production of ESI materials, and the absence of key categories of documents such as carrier policy documents regarding demurrage and detention, chassis and congestion data, and most significantly, shipment-level records.

The parties also held multiple meet-and-confer sessions. On October 3, 2025, SEA challenged OOCL's continued objections to core interrogatories and requests for production, as well as OOCL's assertion that its production was "complete" despite obvious omissions. On November 19, 2025, SEA and OOCL again met and conferred regarding the November 14 deficiency letter and additional categories of information and documents that remained outstanding, including per-container demurrage and detention determinations, collection records, terminal and inland policies, and inland transportation data.

Following OOCL's December 2, 2025, supplemental production, SEA promptly wrote to OOCL's counsel to: (1) identify remaining deficiencies; (2) object to OOCL's continued failure to

provide ESI in native or otherwise reasonably usable, text-searchable form; and (3) give OOCL an opportunity to correct inaccurate representations in Joint Status Report (“JSR”) No. 4 (Dec. 2025) that it had completed its production, and to confirm whether additional tranches of production would be forthcoming by a requested December 8 date.

On December 11, 2025, OOCL responded that it would supplement multiple interrogatory responses and would provide Bates references for certain requests, and also stating that it had produced additional documents for certain categories, while continuing to maintain objections and narrowing certain responses. Although that letter made a number of commitments, OOCL has still not yet produced the full scope of core documents needed for a container-specific and policy-specific record. On December 12, 2025, SEA acknowledged OOCL’s stated commitment to supplement its discovery responses, but noted that the remaining significant disagreements and insufficiencies would still force SEA to move to compel discovery if not promptly resolved. OOCL produced verified supplemental responses on December 31, 2025, and OOCL has continued to trickle out additional tranches of documents, as recently as January 9, 2026, yet OOCL’s responses to discovery are still massively incomplete.

IV. LEGAL STANDARD

The Commission’s rules permit discovery regarding any non-privileged matter that is relevant to a party’s claim or defense and proportional to the needs of the proceeding. 46 C.F.R. § 502.141(e)(1). Discovery may be limited only if it is unreasonably cumulative or duplicative, obtainable from a more convenient source, previously available to the requesting party, or if the burden clearly outweighs its likely benefit. 46 C.F.R. § 502.141(e)(2)(ii). The Commission may, for good cause, manage the burden of discovery through protective orders. 46 C.F.R. § 502.141(j).

Parties must answer interrogatories fully and under oath, and objections must be stated with specificity. 46 C.F.R. § 502.145(b)(4). A party that elects to provide business-records in lieu

of an answer to an interrogatory must specify the responsive records in sufficient detail to allow the requesting party to locate and identify them as readily as the responding party. 46 C.F.R. § 502.145(d)(1). Evasive or incomplete answers are treated as a failure to respond. 46 C.F.R. § 502.150(a)(1).

For documents and ESI, parties must produce materials as they are kept in the usual course of business or organize and label them to correspond to the categories in the request, and must produce ESI in a reasonably usable form. 46 C.F.R. § 502.146(b)(2)(v)(A). Here, the “reasonably usable” requirement is further defined by the Parties’ Protocol Regarding Electronically Stored Information, which governs production mechanics including global de-duplication limits, email threading, and production of ESI with available metadata.

Where the Commission’s rules are silent, the Federal Rules of Civil Procedure apply to the extent consistent with sound administrative practice, including the principles in Rules 26, 33, and 34 governing proportionality, specificity of objections, verified answers, and usable ESI forms. 46 C.F.R. § 502.12.

V. ARGUMENT

A. OOCL misrepresented the status of its deficient discovery.

As an initial matter, OOCL has misrepresented to this tribunal the status of its production, which has prejudiced SEA. On December 1, 2025, in its portion of JSR No. 4, OOCL represented to the ALJ that “[o]n September 26, 2025, OOCL completed its production of documents.” The very next day, on December 2, OOCL served a supplemental production of approximately 3.59 GB, consisting of roughly 1,829 documents and 4,574 pages. That supplemental production contradicted OOCL’s representation that its production was complete. Worse, OOCL made the misrepresentation to the tribunal knowing that its document production was not complete and that it was preparing to serve additional documents the following day.

Contrary to its earlier, repeated assurances, OOCL's production is still substantially incomplete, as detailed further below. The continued sporadic tranches of documents, many themselves not complete, has prejudiced SEA's efforts to prepare its case, and has sought to misrepresent the burden of a *bona fide* good faith production, such as that performed by SEA.

B. Respondents have not provided discovery from Respondents.

The Respondents in this matter are OOCL China and OOCL Europe. Those entities are the carriers under whose waybills the containers were carried on SDD terms, and on whose behalf SEA was charged the unreasonable demurrage. Yet OOCL's production to date does not appear to include any documents from the Respondents themselves. Rather, OOCL's searches and production of ESI have been primarily from non-party OOCL USA.

Although OOCL China is a controlled carrier based in Hong Kong, the production did not include a single document from China. Indeed, only one document produced by OOCL has included Chinese characters – and that document originated in Korea. Further, a thorough search of the metadata from OOCL's production does not indicate a single custodian as being from either Respondent. The foregoing evidences that Respondent custodians and repositories have not been searched – a shocking failure of OOCL to comply with its discovery obligations.

C. Respondents have failed to produce significant numbers of responsive documents.

The failure of OOCL to produce responsive documents is patently obvious from a comparison of OOCL's production to that of SEA. SEA has identified and produced multiple documents authored by, sent from, or exchanged with OOCL email accounts concerning the containers at issue and the charging of demurrage. Those communications between SEA and OOCL are clearly held by OOCL, and are clearly responsive to SEA's discovery requests.

However, with limited exceptions, neither those documents nor related documents, such as internal communications and documents relevant to the matters addressed, have been produced by OOCL.

SEA has also identified numerous incomplete or truncated documents and incomplete email threads. Such incomplete production not only violates the Commission's Rules for discovery, but also violates the Parties' agreed ESI protocol, which permits production of only the most inclusive version of an email thread only if all unique portions of the thread, including unique attachments, are also produced. A few examples of OOCL's failures to make production of documents and related materials evidenced by a comparison of the Parties' respective productions are attached in Appendix I.

Those examples conclusively show that OOCL did not collect, search, and produce communications from key OOCL custodians and mailboxes, did not produce complete email chains, and did not ensure that documents were produced in complete and usable form.

D. OOCL's "possession, custody, or control" objections are improper.

OOCL has raised global objections to SEA's definition of "OOCL" as including OOCL, its related entities, and those acting for OOCL in connection with SEA shipments, in accordance with customary discovery practice. OOCL argues instead that the term "OOCL" is to be limited to only the two OOCL Respondents. OOCL has continued to rely upon its objections as justification for its failure to produce responsive materials from Respondents, from OOCL's U.S. agent OOCL USA, or from other OOCL-controlled affiliates, departments, custodians, or systems that possess responsive communications, contracts, billing data, dispute records, and operational reporting relating to SEA's shipments.

E. OOCL's interrogatory responses have been evasive and incomplete.

OOCL's responses to interrogatories are notably evasive and incomplete, despite repeated efforts by SEA to get answers to the questions asked. The interrogatories to which OOCL's

answers remain incomplete are the following: Interrogatory 3 (request for information regarding OOCL policies in connection with the assessment and collection of demurrage); Interrogatory 4 (request for information regarding OOCL policies regarding the return of empty containers); Interrogatory 5 (request for information regarding container returns); Interrogatory 6 (request for OOCL's quarterly demurrage and detention assessments); Interrogatory 7 (request for OOCL's policies for arranging inland transportation); Interrogatory 8 (request for a list of inland carriers used by OOCL and their respective agreements); Interrogatory 14 (request for total demurrage charged to SEA on SDD shipments); Interrogatory 15 (request for detention charge totals); Interrogatory 16 (request for identification of who at OOCL made demurrage charge determinations with regard to SEA, and how those decisions were made); and Interrogatory 18 (request for contact information of OOCL individuals or departments responsible for disputes related to detention and demurrage during the time of SEA's shipments).

The specific interrogatories, OOCL's initial response, OOCL's supplemental responses, and the reasons why a further response to each should be compelled, as required by 46 C.F.R. § 502.150(a)(2)(ii)-(iii) and by the Initial Order in this matter, are set out fully in Appendix II.

F. OOCL's production is incomplete.

As detailed more fully above and in Appendix III, OOCL has failed to produce numerous core categories of documents requested by SEA. In addition to the broad issues noted above, the requests for production ("RFP") to which OOCL's responses have been insufficient are as follows: RFP 3 (documents and records concerning SEA shipments); RFP 4 (documents reflecting communications regarding SEA shipments); RFP 5 (documents and materials that may be used to support OOCL defenses as noted in OOCL's initial disclosures); RFP 6 (agreements with terminals as well as agreements with inland carriers used for SEA shipments); RFP 7 (documents related to agreements between OOCL and inland carriers connected to SEA shipments); RFP 8 (documents

related to the provision of chassis at inland terminals); RFP 9 (documents analyzing costs and profits from detention and demurrage charges for SDD moves as contrasted to container yard (“CY”) moves); RFP 10 (communications regarding impacts of port congestion on U.S. intermodal transportation and its connection to assessments of detention and demurrage charges); RFP 11 (documents illustrating compliance with the Shipping Act); RFP 12 (documents reflecting policies and procedures for assessing detention and demurrage); RFP 13 (documents relating to reasons for assessment of demurrage and detention charges); and RFP 14 (documents illustrating efforts to collect demurrage and detention charges from SEA).

VI. REQUESTED RELIEF

A. Order to Show Cause

SEA requests the ALJ issue an Order to Show Cause to OOCL to show why a default decision should not be entered under 46 C.F.R. § 502.150(b)(3) based on Respondents’ failure to conduct discovery from Respondents; to address OOCL’s representations in JSR No. 4 (Dec. 2025) that production was “completed” as of September 26, 2025, despite by a substantial production on December 2, 2025 and rolling productions thereafter; and to require Respondents to explain why they did not disclose impediments to Respondent-level discovery in the JSRs despite the ALJ’s direction.

B. Extension of the Discovery Schedule Due to Prejudice; Order of Undue Delay

SEA requests a suitable extension due to OOCL’s failure to pursue discovery from Respondents because that failure has prejudiced SEA’s ability to complete discovery on the current schedule. Even if OOCL now conducts Respondent-level searches, SEA will lack adequate time to review the late-produced materials, take depositions, and incorporate the evidence into expert opinions. Without an extension, OOCL’s noncompliance effectively shortens SEA’s remaining preparation time thereby rewarding the offending party. SEA also requests a finding of undue

delay under 46 U.S.C. § 41302(d) based on OOCL's conduct, which has jeopardized the orderly resolution of this case on the schedule agreed to jointly by the parties, and set by the ALJ.

C. ALJ-Supervised Production Schedule

SEA requests an ALJ-supervised production schedule. At minimum, OOCL should be ordered to serve complete, verified supplemental interrogatory responses and complete its production of documents on an expedited basis, with separate verifications by authorized officers or managing agents of OOCL China and OOCL Europe, based on each entity's own records and knowledge, not solely those of agent OOCL USA.

D. Further Relief

SEA requests such further relief as the ALJ may find appropriate, such as assignment of the burden of establishing the reasonableness of all demurrage and detention charges to OOCL as carrier, consistent with 46 U.S.C. § 41310(b)(2), a proscription against OOCL contentions not disclosed in discovery, and such adverse presumptions against OOCL as appropriate.

VII. CONCLUSION

For the foregoing reasons, SEA respectfully requests that the ALJ grant this Motion to Compel and the requested relief.

Dated: January 23, 2026

Respectfully Submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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